Administrative Changes to DAFPD 10-36, *Contracted Air Services*

OPR: AF/A35E

References to the following Department of War (DoW) publications are hereby changed to Department of Defense (DoD) publications, as listed below, to reflect their official designations as listed on the DoW/DoD Issuances website.

DoDD 1322.18, *Military Training*, 3 October 2019
DoDD 4500.54E, *DoD Foreign Clearance Program (FCP)*, 31 May 2022
DoDI 4500.53, *DoD Commercial Air Transportation Quality and Safety Review Program*, 7 May 2021
DoDD 5000.01, *The Defense Acquisition System*, 9 September 2020
DoDD 5105.64, *Defense Contract Management Agency (DCMA)*, 10 January 2013
DoDI 6055.07, *Mishap Notification, Investigation, Reporting, and Record Keeping*, 6 June 2011

2 OCTOBER 2026

BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE POLICY DIRECTIVE 10-36

15 MAY 2026

Operations

CONTRACTED AIR SERVICES

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-Publishing.af.mil for downloading or ordering

RELEASABILITY: There are no releasability restrictions on this publication

---

OPR: AF/A35E

Certified by: AF/A3
(Lt Gen Cunningham)
Space Force Service Authority:
SF/S3/4/7

Supersedes: AFPD 10-36, 7 February 2022

Pages: 9

This publication implements Title 10, United States Code (USC) Section 9013, Department of Defense (referred to as Department of War (DoW), Department of War Directive (DoWD) 5000.01, *The Defense Acquisition System*, and DoWD 5105.64, *Defense Contract Management Agency (DCMA)*, and is consistent with, Title 49 USC, the Federal Acquisition Regulations (Title 48, Code of Federal Regulations (48 CFR)), the Federal Aviation Regulations (14 CFR), the Defense Contract Management Agency (DCMA) Instruction 8210.1D, *Contractor's Flight and Ground Operations,* and DoWD 1322.18, *Military Training,* for contracted air services necessary to meet unit, major command (MAJCOM), field command (FLDCOM), or Service component requirements. This directive establishes policy for Department of the Air Force (DAF) contracted air services and assigns roles and responsibilities to support the planning and procurement of contracted air services, including the sponsorship of contracted air services procured by or on behalf of foreign governments. This publication applies to all civilian employees and uniformed members of the Regular Air Force, Air Force Reserve, Air National Guard, United States Space Force (USSF), and other individuals or organizations as required by binding agreement or obligation with the Department of the Air Force. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the office of primary responsibility using the DAF Form 847, *Recommendation for Change of*

Publication; route DAF Forms 847 from the field through the appropriate functional chain of command to Headquarters Air Force Exercises and Operational Training Infrastructure Division (AF/A35E) **af.a35e.workflow@us.af.mil**. This policy directive may not be supplemented.

SUMMARY OF CHANGES

Changes to this publication include updating its applicability status to apply to the United States Space Force (USSF) and re-designating this policy directive as a Department of the Air Force Policy Directive (DAFPD). References of non-applicability of this policy to Air Education and Training Command and Air Force Test Center were removed. In addition, administrative and format changes were made to align with the latest publication guidance.

1. Overview.

1.1. Planners and approval authorities must consider factors such as proper aircraft airworthiness, aircraft status (civil, public, or state), aircrew qualification, safety, security, maintenance, liability, and cyber vulnerability/threat considerations when planning for and supporting the procurement of contracted air services, including the sponsorship of contracted air services procured by or on behalf of foreign governments.

1.2. Air services may be contracted when available organic DAF assets are insufficient in meeting unit, MAJCOM/FLDCOM, or Service component requirements including, when authorized, the sponsorship of contracted air services procured by or on behalf of foreign governments. These contracts will be consistent with this DAFPD.

1.3. Educational Services Agreements (ESA) are exempted from this policy. According to the Defense Federal Acquisition Regulations (237.72), an ESA is not a contract. It is an ordering agreement under which the Government may order educational services from an academic institution. Flight training acquired through an educational services agreement will necessarily be conducted by the educational institution as civil aircraft operation(s) (CAO) and may never operate, or be considered to operate, as public aircraft operations (PAO) or state aircraft operations (SAO).

1.4. The scope of this publication is limited to Contractor-Owned, Contractor-Operated (COCO) air services.

2. Policy.

2.1. Within the National Airspace System (NAS), aircraft contracted by the DoW, or a foreign government sponsored by a DAF organization for air services will operate in compliance with Federal Aviation Administration (FAA), range, and local operating regulations and procedures.

2.2. Contracted aircraft operated in Public Aircraft Operations (PAO) or State Aircraft Operations (SAO) status require an assessment for airworthiness in accordance with DAFPD 62-6, *USAF Airworthiness.* For Civil Aircraft Operations (CAO), MAJCOMs or program offices will utilize existing FAA certifications and coordinate, as appropriate, with the Technical Airworthiness Authority (TAA) to assess whether there are any gaps between the intended configuration, usage, and operating environment of the FAA certification and the intended configuration, usage, and operating environment of the aircraft.

2.3. In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.228-7007, *Public Aircraft and State Aircraft Operations – Liability,* contracted COCO aviation services will meet the requirements defined in the interservice publication Defense Contract Management Agency Instruction 8210-1D; Air Force Instruction 10-220; Army Regulation 95-20; NAVAIR Instruction 3710.1H, Commandant Instruction M13020.3B, *Contractor's Flight and Ground Operations,* when COCO aircraft operations (particular flight(s)) are declared PAO or SAO.

2.4. For flights within the NAS, contracts will require contractors to operate their aircraft in civil aircraft status unless a responsible government official designates and declares such aircraft as a public aircraft in accordance with the delegation in **paragraph 3.4.4** of this Policy Directive. Contracts will require contractors to comply with all relevant FAA, range, and local regulations and guidance that are applicable to the contracted air service and associated aircraft status (i.e., CAO or PAO).

2.5. For flights outside of the NAS, contracts will require contractors to operate their aircraft in civil aircraft status unless, in rare circumstances, a responsible government official designates and declares such aircraft as state aircraft in accordance with the delegation in **paragraph 3.4.6** of this Policy Directive. Procedures for approving, designating, declaring, and conducting state aircraft operations are defined in DoWD 4500.54E, *DoW Foreign Clearance Program*, the DoW Foreign Clearance Guide (FCG), and in particular, the FCG DoW Commercial Contract Aircraft Appendix, (**https://www.fcg.pentagon.mil/fcg.cfm**).

2.6. When the DAF designates and declares contracted flights as PAO within the NAS, or as SAO for operations outside the NAS, the DAF becomes responsible for airworthiness, authorization of operations, oversight of the particular operation, oversight of maintenance procedures, and verification of aircrew qualifications and training. The DAF will determine the need to conduct safety and legal accident investigations in accordance with Department of War Instruction (DoWI) 6055.07, *Mishap Notification, Investigation, Reporting, and Record Keeping,* DAFI 91-204, *Safety Investigations and Reports,* and Air Force Instruction 51-307, *Aerospace and Ground Accident Investigations,* and consistent with the provisions of 49 USC § 1132.

2.7. When DoW passengers and cargo will be transported, applicable requirements of 10 USC 2640, 32 CFR 861, and DoWI 4500.53 must be followed. The contracted carrier must be a Commercial Airlift Review Board approved carrier and be certified by the FAA (or foreign regulator) to perform passenger and cargo movement.

3. Roles and Responsibilities.

3.1. **The Deputy Chief of Staff, Operations (AF/A3) will:**

3.1.1. Develop policy for Secretary of the Air Force approval on the use of contracted air services.

3.1.2. Develop guidance to establish specific requirements for contracted air services.

3.1.3. Provide applicable DAF oversight of PAO and SAO on behalf of the USSF Chief Operations Officer (COO) for contracted air service support to USSF FLDCOMs, as requested by the USSF COO.

3.1.4. Execute Secretary of the Air Force responsibilities flowing from DoWD 4500.54E which relates to the designation of contractor aircraft as state aircraft.

3.2. **The Assistant Secretary of the Air Force for Acquisition, Technology & Logistics (SAF/AQ) through the Department of the Air Force Program Executive Officer (PEO) for Services will:**

3.2.1. Provide services acquisition policy and guidance in their role as the DAF's Senior Services Manager.

3.2.2. Provide a governance structure for contracted aircraft requirements in accordance with Department of the Air Force Instruction (DAFI) 63-138, *Acquisition of Services* for contracted aircraft requirements.

3.3. **The Assistant Secretary of the Air Force for Space Acquisition and Integration (SAF/SQ) through the Department of the Air Force Program Executive Officer (PEO) for Services will** provide oversight and direction regarding space systems and programs related to contracted aircraft requirements.

3.4. **Major Command Commanders (MAJCOM/CC) and Field Command Commanders (FLDCOM/CC) will:**

3.4.1. Manage requirements within their contracted aircraft portfolios, including, when authorized, sponsorship of contracted air services procured by or on behalf of foreign governments (e.g., under an existing Foreign Military Sales case).

3.4.2. Develop the requirements for contract air services consistent with AF/A3 requirements.

3.4.3. In conjunction with the servicing legal office, the requiring activity, and the servicing contracting activity, evaluate the costs, benefits, and liability considerations associated with potential use of contractor aircraft in public or state status after determining whether such use is a legally available option. As part of its review, and in consultation with the contracting officer, the servicing legal office will advise on contract scope and contract modifications IAW 41 USC §253 and DFARS 228.371(f) and address the appropriateness of including in the contract DFARS Clause 252.228-7007 addressing contractor liability for contractor operations conducted as PAO or SAO.

3.4.4. Serve as the responsible DAF official with the authority to designate contractor-owned civil aircraft to operate as public aircraft within the NAS, when appropriate, in accordance with 49 USC §§ 40102(a)(41) and 40125, this Policy Directive and DAFI 10-3601, *Procedures for Contracted Air Operations for Training Support*. The MAJCOM/CC or FLDCOM/CC may delegate this authority to no lower than the MAJCOM/FLDCOM Deputy Commander for SAO or PAO. For Air Force Materiel Command (AFMC), PAO designation authority may also be delegated to the AFMC Executive Director (CA) and Center Commanders. AFMC Center Commanders may, in turn, delegate this authority no lower than the Deputy Center Commander or Center Executive Director. The designation must be in writing and specify PAO status for that particular aircraft and operation within the NAS. A contractor will not operate in PAO status without this written designation.

3.4.5. Provide oversight of aircrew, maintenance, and safety program standards for flights designated and declared as PAO or SAO.

3.4.6. Serve as the responsible DAF official with the authority to designate contractor-owned civil aircraft to operate as state aircraft outside the NAS.

3.4.6.1. The MAJCOM/CC or FLDCOM/CC may delegate this authority to no lower than the MAJCOM/FLDCOM Deputy Commander.

3.4.6.2. The authorized DAF official should consult with their servicing legal counsel prior to designating contractor-owned civil aircraft to operate as state aircraft. A contractor will not operate in state aircraft status without this written designation.

3.4.6.3. The state aircraft designation must be in writing and specify SAO for that particular aircraft and operation within outside the NAS. A contractor will not operate in state aircraft status without this written designation.

3.4.6.4. If leveraging contractor-owned civil aircraft managed under contract by a different DoW component or DAF organization, a memorandum of agreement (MOA) or similar arrangement must be in place with that component or organization prior to designating and declaring the aircraft as a public or state aircraft. The MOA or similar arrangement will address supported/supporting roles and responsibilities, as well as the requirements addressed in **paragraph 2** of this Policy Directive.

3.4.7. Assign and execute installation-level program management and contracting support for functional commanders and functional directors as applicable for contract air services.

3.4.8. When sponsoring contracted air services procured by or on behalf of foreign governments, the MAJCOM Foreign Disclosure Officer will coordinate with SAF/IAPD, SAF/IARS, and SAF/IAPW (if needed) to ensure policies support release and/or disclosure of USAF and USSF tactics and related capabilities.

TROY E. MEINK
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

10 USC § 2640, *Charter Air Transportation of Members of the Armed Forces*

10 USC § 9013, *Secretary of the Air Force*

49 USC § 1132, *Civil Aircraft Accident Investigations*

49 USC § 40102(a)(41), *Public Aircraft Authority*

49 USC § 40125, *Qualifications for Public Aircraft Status*

32 CFR § 861, *Department of Defense Commercial Air Transportation Quality and Safety Review Program*

DFARS 252.228-7007, *Public Aircraft and State Aircraft Operations – Liability*, current edition

DoWD 1322.18, *Military Training*, 3 October 2019

DoWD 4500.54E, *DoW Foreign Clearance Program (FCP)*, 31 May 2022

DoWI 4500.53, *DoW Commercial Air Transportation Quality and Safety Review Program*, 7 May 2021

DoWD 5000.01, *The Defense Acquisition System*, 9 September 2020

DoWD 5105.64, *Defense Contract Management Agency (DCMA)*, 10 January 2013

DoWI 6055.07, *Mishap Notification, Investigation, Reporting, and Record Keeping*, 6 June 2011

Defense Contract Management Agency Instruction 8210.1D/AFI 10-220, *Contractor's Flight and Ground Operations*, 6 February 2023

DoW Foreign Clearance Guide*, DoW Commercial Contract Aircraft Appendix*, 26 March 2024

DAFPD 62-6, *USAF Airworthiness*, 11 April 2025

DAFI 10-3601, *Procedures for Contracted Air Operations for Training Support,* 24 Sep 21

DAFI 63-138, *Acquisition of Services*, 2 January 2024

DAFI 91-204, *Safety Investigations and Reports*, 10 March 2021

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 51-307, *Aerospace and Ground Accident Investigations*, 18 March 2019

FAA, *Notice of Policy Regarding Civil Aircraft Operators Providing Contract Support to Government Entities (Public Aircraft Operations)*, 76 FR 16349, 23 March 2011

FAA Advisory Circular 00-1.1B, *Public Aircraft Operations—Manned and Unmanned*, 21 September 2018

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AF—Air Force

AFI—Air Force Instruction

AFPD—Air Force Policy Directive

CAO—Civil Aircraft Operations

CFR—Code of Federal Regulations

COCO—Contractor-Owned, Contractor-Operated

COO—Chief Operations Officer

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFPD—Department of the Air Force Policy Directive

DFARS—Defense Federal Acquisition Regulation Supplement

DoW—Department of War

DoWD—Department of War Directive

DoWI—Department of War Instruction

FAA—Federal Aviation Administration

FCG—Foreign Clearance Guide

FLDCOM—Field Command

MAJCOM—Major Command

MOA—Memorandum of Agreement

NAS—National Airspace System

PAO—Public Aircraft Operations

PEO—Program Executive Officer

SAO—State Aircraft Operations

USAF—United States Air Force

USC—United States Code

USSF—United States Space Force

Office Symbols

AF/A3—Headquarters United States Air Force, Deputy Chief of Staff for Operations

AF/A35—Director, Future Operations

AF/A35E—Exercises and Operational Training Infrastructure Division

DAF PEO Services—Department of the Air Force Program Executive Officer (PEO) for Services

FLDCOM/CC—Field Command Commander

MAJCOM/CC—Major Command Commander

SAF/AQ—Assistant Secretary of the Air Force for Acquisition

SAF/IAPD—Deputy Under Secretary of the Air Force for International Affairs, Disclosure Division

SAF/IAPW—Deputy Under Secretary of the Air Force for International Affairs, Weapons Division

SAF/IARS—Deputy Under Secretary of the Air Force for International Affairs, Space Division

SAF/SQ—Assistant Secretary of the Air Force for Space Acquisition and Integration

SF/S3/4/7—Deputy Chief of Space Operations for Operations

Terms

Civil Aircraft—an aircraft except for a public aircraft or state aircraft.

Civil Aircraft Operations (CAO)—Within the NAS, all aircraft operations other than those designated, declared, and conducted as PAO in accordance with applicable law and policy. Outside the NAS, all aircraft operations other than those designated, declared, and conducted as SAO in accordance with applicable law and policy. Commercially procured air services, especially COCO flight services, are primarily intended as civil air operations.

Contract Air Services—A contract for COCO flight services that supports unit, MAJCOM/FLDCOM, or Service component requirements including, when authorized, the sponsorship of contracted air services procured by or on behalf of foreign governments. This includes training, training support, intelligence, logistics, and test functions.

Contractor-Owned, Contractor-Operated (COCO)—Refers to services performed by a contractor using contractor provided equipment for federal government purposes. It can include vehicles, aircraft, or other resources.

Organic AF Assets—For purposes of the policy, aircraft owned and operated by the DAF.

Public Aircraft Operations (PAO)—The operation of an aircraft that meets the legal definition of "public aircraft" established in 49 USC § 40102(a)(41) and the legal qualifications for public aircraft status outlined in 49 USC § 40125 and has been designated and declared to be in PAO status by the responsible government official.

State Aircraft Operations (SAO)—The operation of an aircraft used in military, customs, and police services. State aircraft may include civil-registered aircraft that are specifically designated as state aircraft, and operated by a government for sovereign, non-commercial purposes.